

Vagus Nerve Stimulation for Treatment of Resistant Depression (TRD)

CAG-00313R

Issue

The Vagus Nerve Stimulation (VNS) system is comprised of an implantable pulse generator and lead and an external programming system used to change stimulation settings.

CMS currently provides coverage for VNS for patients with medically refractory partial onset seizures, for whom surgery is not recommended or for whom surgery has failed. VNS is not covered for patients with other types of seizure disorders which are medically refractory and for whom surgery is not recommended or for whom surgery has failed.

A partial onset seizure has a focal onset in one area of the brain and may or may not involve a loss of motor control or alteration of consciousness. Partial onset seizures may be simple, complex, or complex partial seizures, secondarily generalized.

On July 26, 2006, CMS received a formal request for reconsideration from Cyberonics, Inc. The company proposed that CMS revise its current NCD to include coverage of VNS for treatment of resistant depression (TRD) for patients who have been either (1) previously treated with or refused treatment with electroconvulsive therapy (ECT), or (2) have been previously hospitalized for depression. The specific indication requested for coverage is for the adjunctive long-term treatment of chronic or recurrent depression for patients over the age of 18 who are experiencing a major depressive episode and have not had an adequate response to four or more adequate depression treatments.

Cyberonics, Inc. also requests that following to be considered as contraindications:

- The VNS Therapy System cannot be used in patients after a bilateral or left cervical vagotomy.
- Do not use short wave diathermy, microwave diathermy or therapeutic ultrasound diathermy on patients implanted with a VNS Therapy System. Diagnostic ultrasound is not included in this contraindication.

National Coverage Determinations

[NCD for Vagus Nerve Stimulation \(VNS\) \(160.18\)](#) 

Benefit Category

Durable Medical Equipment

Incident to a physician's professional Service

Physicians' Services

Requestor Information

Requestor Name	Requestor Letter
Richard L. Rudolph, MD (Cyberonics, Inc.)	View Letter 

Important Dates

Formal Request Accepted and Review Initiated

08/07/2006

Expected NCA Completion Date

05/06/2007

Public Comment Period

08/07/2006 - 09/06/2006

Proposed Decision Memo Released

02/05/2007

Proposed Decision Memo Public Comment Period

02/05/2007 - 03/07/2007

Decision Memo Released

05/04/2007

Comments for this NCA

[View Public Comments](#)

Contacts

Lead Analysts

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Lead Medical Officers

Jyme Schafer, MD, MPH

Actions Taken

August 7, 2006

CMS opens this national coverage determination (NCD) as a reconsideration for the coverage decision made on VNS. Currently, CMS covers VNS for treatment of seizures with certain indications and limitations. However, CMS has received a formal request to reconsider expanding the coverage of VNS for treatment of resistant depression (TRD). CMS is requesting public comments.

After considering the public comments, CMS will release a proposed decision memorandum. Instructions for submitting public comments can be found at <http://www.cms.hhs.gov/Medicare/Coverage/InfoExchange/publiccomments.html#TopOfPage> 

February 5, 2007

CMS posts the [Proposed Decision Memorandum](#)  and opens a 30-day period on the proposed decision.

CMS is requesting public comments on the proposed decision memorandum. CMS is particularly interested in the quality of data and evidence cited in public comments rather than the quantity of comments received. Instructions for submitting comments can be found at:

<http://www.cms.hhs.gov/Medicare/Coverage/InfoExchange/publiccomments.html#TopOfPage> 

May 4, 2007

After considering the public comments and all clinical evidence on the proposed decision, CMS posts its [final decision memo](#) .